

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 08/18/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested, the requesting party shall specify the issues to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRlV0Znhvai9qT05tZz09#success>

Law & Motion

1. 9:00 AM CASE NUMBER: L22-02131

CASE NAME: DISCOVER BANK VS. CHRISTOPHER PEANG

*HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION FOR ENTERING JUDGMENT
PURSUANT TO DEFENDANT'S DEFAULT UNDER SETTLEMENT AND RELEASE AGREEMENT
FILED BY:

TENTATIVE RULING:

Plaintiff filed a Motion to set aside a dismissal and enter judgment, on 2/18/26, which was originally scheduled to be heard on 6/2/26.

However, on 6/2/26, this court found that the copy of the agreement at issue, provided by Plaintiff as an exhibit attached to their Motion and also in court during the hearing, was not sufficiently legible. The court continued the matter to 8/18/26, 9am, and ordered Plaintiff to file a legible copy of the agreement.

That has not been done.

This court does not find sufficient evidence to rule on Plaintiff's behalf, given the evidence provided.

This court already gave the Plaintiff an opportunity to fix the problem; they chose not to avail themselves of that chance.

Disposition

Plaintiff's Motion is denied without prejudice.
Court to file Order.